

Lecture # 11

Islam

Sea.

Makkah was a thriving city of the coastal plains of the Red Sea. It commanded two important trade routes, one connecting with the sea and the other across the Arabian desert to Mesopotamia.

Makkah profited from this favorable geographical location and from the disruption of trade created by the hostility between Byzantine Rome and the Sassanian Persia. They thus became wealthy and powerful.

They produced nothing themselves but dealt in the products of others.

At Muhammed's birth his tribesmen, the Quraysh, were the most prestigious and influential group in all of Arabia.

However, their association with Makkah had been short, less than a hundred years since it had been a nomadic tribe who conquered another to settle near Makkah.

Because of this change from nomad to settled commerce, great dissatisfaction was evident in many areas but especially centered around the breakdown of traditional tribal values which had protected the weak under the bond of kinship.

Around the emergence of a new merchant oligarchy whose power was based upon its wealth, and around the concentration of wealth in private hands new values arose.

The nomadic existence meant a meager existence with much competition between tribes for the sparse land.

always

From time to time tribal groups were forced to migrate, to the north since there was nowhere south for them to go.

The rough existence created a people who were reckless, passionate and vibrant. Theirs was literally a philosophy of eat, drink and be merry for tomorrow we die.

They courted death for the glory it would briefly bring one who met it as a hero.

Their prized virtues were generosity and steadfastness as well as courage.

Religiously the pre-Islamic Arabs lacked any religious conviction or mythology which gave life meaning beyond the here and now.

They recognized certain deities, and a host of demons and spirits who inhabited springs and groves but had no form of a connected pantheon.

In fact these various deities constituted an additional element in the general insecurity and fearfulness of life.

some deities had shrines dedicated to them and pilgrimages were made to them.

such was the case with the three goddesses al-Manat, al-Lat and al-Uzza whom the Quraysh called the daughters of Allah.

these three figured in an important incident early in Muhammad's career when he seemed to waver in his devotion to the one God and relapse into paganism.

The Ka'bah was an important shrine in Makkah which Muhammed eventually took over as the most important for Islam.

its principle god seems

seems to have been Hubal, whom Muhammed

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destroyed and replaced with worship of Allah. It contains a sacred black stone (probably a meteor) which was said to be sent down from heaven by God in ancient times.

The obligation of blood revenge was perhaps, as close to a genuine religious and moral imperative as the Arabs recognized.

because of the clan structure, any offence against any member of the clan was considered a crime against the whole clan.

Without the support of one's kinsmen no man could hope to survive, for he might become the victim of any whom he met.

it was the withdrawal of his clan's protection after the death of his uncle, Abu Tali, that finally forced Muhammed to leave Makkah.

Muhammed (near 570-632 C.E)

began his public career around 610 (precise date unknown) as a preacher and religious leader.

he belonged to one of the poorer clans of the Quraysh and thus had small claim to distinction among his fellows.

he had the habit for a long time of seclusion and meditation in the barren hills surrounding the city.

these solitary vigils came to a climax in a series of intense religious experiences in which he felt himself to be overborne by divine power and compelled to take up the burden of preaching to the people of his time.

It gave a new world view to the Arabs and became the basis for the formation of a new community which eventually became the bearer of the most brilliant culture of the era.

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It did not come easily as Muhammad endured a crisis of personality that was traumatic in the extreme and drove him nearly to suicide.

however, with the help of his wife Khadijah who helped him to

grasp and understand his prophetic calling, he accepted his role as a prophet.

he then began to declare himself a prophet of the one God and to warn his fellow arabs of the consequences of their misguided way of life.

Little is known about his life, not even the date of his birth is sure.

it is known he was orphaned at an early age and that he was brought up by a kindly uncle, Abu Talib, who never became a muslim himself, but did protect Muhammad from the hostile Makkans.

He married a wealthy widow, Khadijah, and for as long as she lived, Muhammad took no other wife. they had several children but one of his great disappointments was that none of his male children survived childhood.

in later life, however, he contracted a number of marriages.

the information of his last ten years, the years in Madinah, is vastly fuller than the makkan period.

There was much hostility and rivalry between clans such that violence was an element in the unease which prevailed tribal society on the eve of Islam.

The effect of Muhammad's message was to set aside loyalty to

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the tribe for loyalty to the newly formed religious community cutting across tribal lines, while at the same time preserving the values of solidarity, mutual protection, and mutual interest within the Islamic Ummah (community).

The Islamic community was new and all-inclusive tribe in which all Muslims owed the duty of brothers to all others regardless of blood kinship.

it also channeled their warlike energies into the service of a nobler cause.

thus Islam preserved and built upon the pre-islamic tradition while subtly reorienting the pagan values by basing them upon a comprehensive world view whose fundamental element was one sovereign creative deity.

Muhammed called that which he summoned them to **Islam** which "means submission, surrender; acceptance of obedience.">

His call was twofold.

1. to recognize a sovereign divine power which fashions and controls human destiny and

2 to commit oneself in ever renewed obedience to following the pattern ordained by the divine will for men.

thus islam is the resignation of oneself into the hands of God, throughout life and in all respects:

A Musiim then is a man who holds this attitude which means literally that he commits himself to make the divine will the norm of his life.

It is not known how long before he began preaching that the

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first revelations collected in The Quran came to Muhammad.

he was far from an immediate success and in 10 years in Makkah with his preaching only gathered a handful of the prominent men the lower classes.

Most of his believers were slaves or members of opposition to him intensified and tho his own clan could protect him from physical harm, nothing could stop the verbal abuse poured on him.

at some point one group of his followers emigrated to Abvyssinia tho the reasons are not clear. Muslim tradition say to escape persecution but recent scholarship has tended to suggest that the move may reflect other motives, possibly a controversy and division within the young muslim community. it was

Opposition to Muhammad in Makkah had several basis:

1. there was a general refusal to take him seriously and dismiss him as another soothsayers familiar to the pre-islamic arabs.

2. the Makkans' response to Muhammad's attacks upon their forefathers for whom he predicted punishment in hell as a consequence of their misguided lives. this was an insult as was questioning the authority of tradition. it threatened the whole social fabric.

3. most frightening of all his claim to be a prophet. If he were accepted as such they would have no choice but to accept him as the cheif man in the community.

the rich merchants were not likely willingly to see their

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place of primacy taken over by another. He also attacked the gods which meant the pilgrim trade which many Makkans relied on for livelyhood.

he at no time attacked the cult of the Ka'bah.

The breaking point was reached for the Makkans when Muhammad began to enter into relations with persons in other places,

seeking alliances against his own people.

in the end he had to flee for his life after sending away most of his followers.

the departure from Makkah is the famous hijrah which not only marks a decisive turning in Muhammad's career but is also the date from which the Islamic calendar is reckoned to begin.

C.E

In Madinah Muhammad's situation was entirely different. already had followers there (some who had come the Ka'bah at Makkah.)

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on a pilgrimage to

they arranged that he should act as arbitrator in a bitter dispute about the ownership of land which had pitched the settled tribes of the casis against one another in a destructive blood fued.

he went to Madinah as a recognized leader, bringing others with him including several of the Jewish religion the arabic speaking.

Muhammad's task was to consolidate his position which would make a community under his leadership.

One of his first acts was to draw up a document called the

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Constitution of Madinah declaring all the Madinese--Muslims, Jews, and pagans alike--to be one community under his leadership.

as time passed his conception of the community both narrowed and clarified until in the end it came to include only Muslims.

The struggle to establish himself firmly in Madinah was difficult and long as there were still many who opposed Muhammad.

The Quran condemns these "hypocrites" for their deviousness. with the Jews Muhammad soon came to an open break, some of them being driven out and others killed or sold into slavery.

the cause of conflict was the steadfast Jewish refusal to accept Muhammad on his own terms as

terms as a genuine prophet.

these attitudes stung Muhammad because of his expectation that the Jews and christians would recognize and acknowledge him a prophet like the others whom they revered.

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Once established in Madeniah, he extended his network of power to Bedouin tribes and was able to challenge even the power of Makkah.

His objective was to disrupt trade on which the city depended.
in 624 he attempted to intercept a Makkan caravan and caused a battle which the Muslims won.

in further battles, tho greatly outnumbered, the Muslims won .
Military power was nither effective against muhammad nor was it the method which **he** himself uded to build his power.

the secret of his success was his materly diplomacy based on an instinctive understanding of tribal relationships and the nature of Makkan power.

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Makkah fell to Muhammad in 630 and the Ka'bah was cleansed of its pagan symbols. that victory was acheived without a single sword stroke .

with Makkah captured, all remaining resistance was shattered and the tribesmen came flocking in thousands to accept Islam and to pledge their allegiance to the prophet.

Muhammad died unexpectedly in 632 after a brief illness . In the previous 10 years he rose from the status of fugitive to the most powerful man in Arabia.

the four questions answered for Muhammad:

1 Ult. con. was l.in this life-pleasing Allah tho social justice. how one lived was the key to salvation. one must follow the sharia literally, the path to the water. must follow laws of Islam because they were the laws of God.

2. Highest reality was obviously Allah--means the God.
name

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3. human pred. was sin
human beings .

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sin against god and, 2. sing against

Shirk was the greatest sin. that is worshiping someting as God that is not. **felt** Christians were doing that in worshiping Jesus.

4. the solution was follow the shiria obey the rules, yourself .

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BOOK

BEYDİRİMDƏNexpose yatagaingate Heavens

means simply
it is made up of
after mohammads death.
him throughout his life.
this is the

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or chapters which were collected
these are revelations which were given to
of religius berlief or practice.

in all matters

the individual revelations are referred to as Qurans.
both Mohammad and later muslims believed the Qur'an to derive
from a heavenly original, a book that is with God a
"Well-preserved tablet **that** only the pure may touch."
This book has been partially revealed to man from time to time
through a series of prophets including Moses, David and Jesus.
as well as many others in all religions.

AS seen in the light of the Islamic doctrine of prophecy,
history is a process of mankind's having repeatedly fallen away
from the path marked out by divine guidance and likewise having
been, continually restored to it again by renewed acts of mercy
through the institution of prophecy.

there have been as many as
as many as a hundred thousand, one at least to
each people.

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so-**airedy** established-ily The method-conaturisation EmeAS

theologians in the thrid Islamic century underlined the
doctrine that the Qur'an is uncreated and coeternal with
God. --ie., the divine message itself.

tradition has it that Mohammad was keeping a prayer vigil on Mt.
hira near Makkah when an angelic visitor (later tradition says
Gabrial) came to him and said "Igra" or Recite. M. refused at
first and the angel had to command three times and practically
choke him before he would give his consent.

then Muhammad received the first revelation which autorites
identify with Surah 96:1-5:

In the Name of God, the Mewrciful, the Compassionate

recite: In the Name of thy Lord who
created, created Man of a
blood-clot.

recite: and thy Lords is the Most
Generous, who taught by the Pen, taught

Man that he knew not.

This tries to make it clear ~~that~~ there was no initiative on muhammad's part. Rather the revelation came against his will the 114 surahs are arranged by length from the longest to the shortest. the earliest chapters are full of outbursts about mans rebellion and God's judgement.

the Surahs were later divided into verses or ayahs for the sake of convenience.

The muslim conviction that the Quran **is** the very words of God himself, preserved exactly to the last syllable as they were revealed, explains many things about religious attitudes and practice in Islam.

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In the Quran it Says

the muslim method of solving religious problems or expounding normative belief and practice is that of deductive reasoning. the Qur'an **is** used and then the implications of a revelation are considered for a given problem.

Religious thinking among Muslims is bound most closely to the text of the Qur'an.

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The Qur'an which we have today was collected and ordered under the initiative of the third Khalifah, Uthman, who feared conflict in the community over disagreements about the sacred book

Other

in 660 an official text based on a document in the possession of the daughter of the second Khalifah was published. versions of the qur'an were destroyed. We know of at least 4 other versions because of references to them.

today the Uthmanic Qur'an is the only recognized one.

however,

the others have great similarity to the official one so critical scholarship and muslim faith both agree that the Qur'an is an authentic record of the message which Muhammad declared to the Arabs.

The Five Pillars of Islam

These are the most basic duties for muslims. they are described not in the Qur'an but in a law books called fiqh.

under the section of obligations owing to God.

these five are witnessing, ritual prayr, fasting in the month of Ramadan, almsgiving and the pilgramage to Makkah.

it is obligatory upon every Muslim to give public testimony of his faith in the unity of God and the prophethood of Muhammad by verbal declaration

the customary formula reads, "I testify that there is no God but the one God, and Muhammad is his prophet."

this affirmation in the presence of witnesses is the mark of a man's being a Muslim for purposes of membership in the community

other articles of belief deemed essential but not included in the witnessing formula are belief in angels, in the books of God, in all the apostles and in the coming judgement day.

is the most visible mark of Islamic piety which adult muslims of sound mind and body everywhere are expected to perform as an absolute obligation five times each day.

the worshipper faces Makkah standing, then goes to a kneeling position and then bowing in prostration. each of the five times has a different recitation from the Qur'an, praises to God and other prayers.

this can only be done in a state of ritual purity thus it is always preceded by a washing or a full bath.

it is customary for mosques to have the facilities for this

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purification

on fridays there is a special value given to the performance of salat along with a congregation.

congregational prayer is normally followed by a sermon preached from the pulpit which in many mosques is the only furniture to be found.

the times of prayer (before sunrise, dawn, noon, afternoon, after sunset) are announced from a minaret but a mu'adhdhin (one who calls to prayer.)

this is a great bond of unity for Islamic peoples everywhere.

There are many other kinds of prayers, in fact an entire catalog to accompany each act and undertaking of life.

this gives a devotional richness to Islam which is often overlooked.

this celebrates when "the Qur'an came down" and is another duty upon every adult Muslim.

since Muslims follow a lunar calendar for religious purposes, the month of Ramadan moves successively thru all the seasons of

the year .

throughout the month faithful muslims meet in mosques in the night where the Qur'an is recited in divisions that allow it to be completed within the span of 30 nights.

the end of the month of fasting is marked by the greatest festival of the Islamic year, the Id al-Fitr or festival of the

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breaking of the fast .

it is joyous, and the best attended services of the year.

in many countries it is the custom to wear new clothing, to visit friends, and to exchange gifts.

Those who do not have to fast during the daylight hours during Ramadan are those who are ill travelers who have begun their journey before sunrise, those who must use strenuous labor and some others but the Shariah provides that the days of fasting must be made up in some cases.

fasting at other times is also widely practiced as an act of self-discipline and dedication to God.

Islam however, generally counsels moderation in fasting as in other things, and most authorities forbid fasting more than four days continuously outside Ramadan.

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is the fourth pillar and is associated with ritual prayer as a sign of submission to the authority of the prophet .

muslims are obligated to pay fixed amounts on various types of property, and the revenue so collected may be employed only for specified purposes of which the most important are help to the poor and needy and to the wayfarer, and support for the cause of God, i.e., to finance the holy war against infidelity.

an individual may pay his Zakat or alms directly to one who needs it but most the time it has been through the state.

this has become much more complicated as the various states have adopted other taxes but it is an obligation on every muslim with property beyond the minimum designated in the shariah .

is the last of the five pillars and is the duty of every muslim, male or female, who can possibly afford it .

go at least once in a lifetime .

one should

for many muslims the pilgrimage is the dream and goal of a lifetime and many labor and struggle for years to save the sums

necessary to accomplish it.

the ceremony of the Hajj takes several days to fulfill and dates back to pre-Islamic times.

it is a good example of how Muhammad adapted certain of the practices of his ancestors to the new world view of

Islam.

the principle parts of the ceremony are: 1. the assumption of pilgrim dress upon entering the sacred area.

2. circumambulation of the Ka'bah, climaxed by kissing the black stone set in one of its corners.

3. running back and forth between the hills of Safa and Marwah and

4 standing at the hill of "Arafat and casting stones at Mina. it consists of throwing seven stones onto one of three piles of stone.

the meaning of this ceremony is not clear but muslim commentators have explained it as "stoning the devil. " with the completion of these the pilgrimage proper is finished but it is customary to observe one more set of ceremonies the

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most important of which is the sacrifice of an animal.

This occasion at the end of the hajj provides the Islamic world with its second greatest festival the Id al-Adha, festival of sacrifice.

or

not only the pilgrims but all Muslims who can afford it make sacrifice on that day. Much of the meat from sacrificial animals goes to the poor.

the range of Islamic ceremony is not limited to the five pillars tho they are the fundamentals of muslim worship.

there are many other times of significance including the celebration of the birthday of the prophet.

Among the Shilah the most important day of the year is the tenth of the month of Muharram, on which the martyrdom of imam Husayn is remembered and lamented. (will discuss more later)

for the millions drawn to Sufi piety, each thursday night is a time of particular importance, when the Sufi circles meet to the name of God, for on that night God is believed to draw close to the earth to hear the petitions of the faithful.

"remember 11

the Qur'an becomes the source for most Islamic law and is the central symbol of Islam. considered the unchanging word of God

thus one of the worst sins one could commit was innovation.

mystics and others were later persecuted because it was considered that they were changing God's law.

unlike Christian and Jewish scriptures, there is no exegeses or critical study of the Qur'an. it is interpreted

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traditionally.

it is the rallying point for all Muslim thinkers and Movements.

resists any change--no interpretation allowed.
one other ideal that needs to be mentioned is the holy war or Jihad.

anyone who dies for the faith either in defense or to spread Islam will go immediately to Heaven.

one cannot overemphasize the strength the Quran holds for Muslims.

Islamic theology and law

The Qur'an is in no sense a book of theology but bespeaks its origin as being from prophetic inspiration.

thus it is at many points unclear in its teachings or incomplete and in certain vital areas even appears as inconsistent.

After a hundred years or more the Muslims became acquainted with the modes of Greek thought a true Islamic theology was born.

at the popular level, though, there was a parallel development of religious beliefs which were often in conflict with the opinions of the learned but had great meaning to the masses.

The stimulus to develop a precise statement of religious doctrines was twofold:

1. tensions within the Islamic community
- 2.

confrontation with outsiders whom the Muslims encountered in the conquered territories after their great expansion.
Internal problems, especially that of political leadership led to debate on such matters as predestination and free will

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the nature of fatih and big and little sins.

predistination and free will, which is confusing in the

controversies

qui an, became of prime importance in the political surrounding the establishment of the Arab kingdom in Damascus.

a number of learned scholars were employed by the Ummawi rulers to counteract criticism of their regime with religious

propaganda arguing that things happen in the world according to God's will by the principle of predestination. thus they had a right to rule.

the opponents argued that man has freedom to choose his actions and the duty to fight against tyranny and wrongdoing wherever they occur.

neither side had difficulty finding verses in the Qur'an to support its views.

on faith the majority opinion is that faith is 1. confession with the tongue and

2.

assent in the heart.

faith may increase and decrease.

the question of who is a

Muslim? can only be answered by God since he alone can see into the hearts of men.

The Mutazilah were the first Muslims to develop a theology

they appeared toward the end of the first islamic century and had gained fairly extensive acquaintance with Greek philosophy they have been characterized as rationalists.

they were not trying to undercut Islam, but were firm believers

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revelation and prophecy and even in the authority of the prophetic tradition.

the principle teachings were conveyed in their being called the people of unity and justice.

by unity is meant the unity of God.

the point is to 1. underling the exclusive sovereignty of God over the many powers recognized by the pagan Arabs, and

2. to call the Arabs attention to the divine power which controlled their destinies.

God unity was interpreted in reference to the divine nature.

They taught that God is one in the sense of being simple and uncompounded, not made of parts, and incapable of any division in his constitution.

Of

they denied any anthropomorphism in connection with God.

Thru the Greek philosphy, the Mu'tazilah had gained a vision

a transcendental rational order so they invoked rational criteria for assessing the validity of religious doctrines.

on divine Justice they applied the same rational approach.

they could not accept predestinarian views of the majority of their traditionalist contemporaries.

it.

if God predestines men to do evil and then punishes them for he is guilty of injustice, which is inconceivable divine being.

for the

thus humans must have free will and that reward or punishment must be in accord with the freely chosen actions of humans.

God by his nature always does what is best and this means Allah is under restraint to do only what is reasonably just and therefore can't do anything he wants to do, unless he wants to do only what is just.

God.

any doctrines which throw doubt on Allah's justice are wrong. to other Muslims it looked like they were putting limets on because Allah was merciful and compassionate he was required

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to send a revelation for our salvation (the Qur'an)

They agreed that the Qur'an was eternal and uncreated.

Evil then is human, not in God, as people have free choice. to be human We must be able to choose.

After some limited SUCCESS

the Mutazilah were

decisively

rejected by the Muslims and passed out of existence.

however,

they made a permanent contribution by bringing the apparatus and approach of Greek Philosophy into the service of Islam and beginning the science of Kalam (theology).

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Science of the rational

defense of religious doctrine.

ult. con. Unity and justice of God.

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Hig. real. Allah, simple unity,

can't speak of divine

attributes

for

Hum, Fred. evil man has free will so is human trait.

solution follow Qur'an because God is just and gave revelation salvation.

al-Ash'ari (d. 873)

began as a Mu'tazilah but broke with them taking the majority view.

to uphold his own view he used the methods and vocabulary he had learned from the Mu'tazilah.

al-Ash'ari made use of the authority of the revelation of the prophet rather than of

reason as the Mu'tazilah did.

his purposes were primarily defensive, to ward off the attacks of those who questioned certain aspects of traditional he as

Islam.

literalist in his attitude toward the declarations of the Qur'an insisting that they must be taken for what they say.

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he affirmed the reality of God's attributes and upheld the notion

of God on the Last Day as a reality. both of which the Mu'tazilah denied as contrary to reason.

he had an anthropomorphic view of God since the Qur'an said so but saying that God has hands and that he sits upon his throne, but the hands and the sitting are not like those of human beings.

when one experiences the divine attributes, it is really an experience

of Allah.

the seven attributes are life, knowledge, power, will, hearing, sight, and speech.

when human beings act it is Allah that causes them to act. thus he came down on the side of predestination, interpretation of it as can be found anywhere.

a very strict
no way

his doctrine of predestination grew out of his vivid perception of the sovereignty of God which he would not compromise. He could not admit the existence of any power alongside God in the universe.

thus God causes human beings to think of him so humans are not free moral agents.

"Allah created unbelief of the infidel and damned him for it

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man

however. al Ashari Still takes a middle position.

although all things, including human action, are predestined,

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responsible for what he does.

it

is God who in reality acts, but man acquires the action and accountability for it.

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this has puzzled muslim thinkers thru the ages since then.

The theological position enunciated by al-Ashari has gained the assent of the great majority of Sunni Muslims so much so that it is sometimes referred to as Islamic orthodoxy.

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with but small differences his views are accepted as normative by conservative Muslims to our own time.

uit. Con is pleasing Allah in this life, social justice, and follow the Bur EΠ

Hig. rel Allah, all

in all, when experience divine attributes (7 of them) it is allah. allah causes people to act.

Hum_pred. sin. man is totally predestined in his action and thought but may acquire right way to act. even evil action is of allah.

solution follow the qur'an to the letter.

Islamic Law

The most fundamental of all words in the Muslim religious vocabulary is guidance (hudan).

It is this guidance in all the situations of life that the Muslim expects from his religioj.

in the broadest sense of general principles the law is spoken as the Shari'ah a word meaning the path to the water it designates the means by which one attains the goal of

Jem, the way of salvation is by keeping the law.

the Shariah is thus a transcendental eternal divine will for humans.

expression of the

thus the Islam or commitment which God demands is commitment to following the shari'ah for in no other way can one be pleasing to God and escape his wrath.

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→ mere creature and cannot judge between right and wrong. what is right is because God has decreed it and not a question of human rights or other natural bases of moral judgement.

a law which represents the eternal will of the universe's creator is infallible and man's attitude toward it should be one of humble submission.

islamic law touches all spheres of life including legal concern, contracts, criminal matters, marriage and divorce as well as dress, foodstuffs, ritual and even the forms of greeting and courtesy

the subject matter is divided into

1. obligations owing to God, such as the profession of faith,

performance of prayer and other religious duties and

2. obligations owing to other men or all those things which affect individual and social morality. the conduct of state, etc.

all human activity is classified under one of five headings thus showing that the shari'ah is indifferent to nothing.

actions are either obligatory (like confessing Allah's unity), recommended, permitted, disapproved but not outright forbidden, like divorce, absolutely forbidden like eating pork.

Each person stands in an immediate relationship of accountability with God and none can substitute for another. the process of finding definite rules from broad principles 1

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what we know as jurisprudence, in the Islamic case as **fiqh**

the word *fah* means understanding, and in connection with the I was

it refers to two things.

first it is the name accorded the process of deriving explicit rules of law from the transcendent shari'ah and

second it is used for the result of that process, that is, for the books of rules compiled thru the jurist's efforts.

thus one speaks of the books of *fah*

a person who is skilled in this is called a *faqih*.

The need for the development of a science of jurisprudence came from the frequent unclarity of the revelations of the qur'an.

al-Shafi'i (b. 767) was a brilliant lawyer and polemicist who thru an extensive series of writings analyzed and discussed the rival opinions of jurists.

he worked out a concise and clear theory of the sources or roots of Islamic law tho it Was some time before his Views were generally accepted.

in due course it won universal assent among Sunn1 muslims.

he held that there were four roots of the law.

the first and most authoritative was the Qur'an which no other authority could supersede.

given subject there are clear Quranic commandments these are unqualifiedly to prevail above everything else .

however, there are few clear cut dictums in the Qur'an the second SourgP is the sunnah of the Prophet.

where it could be established on the basis of reliable reports that the Prophet had acted or judged matters in a particular way, such a precedent was not only trustworthy but constituted an obligation upon the Muslims to follow it.

it cannot be too strongly emphasized that the Muslim tendency to look to the past a storehouse of valid and normative

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guidance is of the very essence of the Islamic mentality

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Al-Shafi cut through all confusion about these traditions by maintaining against many opponents that the normative sunnah was that of the Prophet and the Prophet alone. What must be sought

Muhammad's example, and those of all others are irrelevant.

the contents of the Prophet's sunnah ls known to Muslims thru R series of oral reports about him which record his sayings, doings, and implicit approbations.

These oral reports called a hadith were sifted through in later centuries to determine what was authentic.

thus emerged 1 Science for the criticism and authentication of hadith which as remained until today one of the central preoccupations of Islamic learning.

In the late second Islamic century thge criticism of hadith and the effort to separate the true from the false came to fruition in certain carerull sifted collections that have an authority for

Muslims second chl, to the Qur

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these are called the Six sound Books of tradition

One

scholar was said to have sifted more than 600,000 separate hadith

in order to arrive at his collection

of 2,762 which he considered

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authentically to have come from the prophet.

this has not stopped muslims from making use of many other works on hadith. the faqih or learned man ranges freely through it to find the hadith that help him to solve whatever problem may be under consideration..

in modern times there has been an attack on the authenticity of the hadith from both w/o and w/ the islamic camp.

some muslim reformers in the 20th century have declared their freedom from the authority of hadith altogether.

the third source of legal guidance (if the Qur'an and sunnah don't have an answer) is called the ijma or consensus of the community.

if in looking at the past one discovers that the community at large or its most learned men have generally agreed upon a doctrine or a practice, he may take this consensus as sanction, provided always that the consensus does not go against the Qur'an or sunnah.

the appeal to ijma underlines the Islamic attitude toward the past for in the final analysis it is another name

for

tradition.

the fourth and final source of Islamic law to be resorted to only

If the above three cannot give guidance

give guidance is Qiyas or analogical

reasoning.

this must be used only under the strictest control.

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some circumstances, it is legitimate to extend the

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Implications of an explicit rule of law arrived at on the basis of one of the three preceding sources to cover a different but analogous situation that is not specifically provided for,,

for instance, the Qur'anic prohibition of wine on the basis of its being an intoxicant allows the faqih to judge that other intoxicants are also to be forbidden.

also,

it is alright for a muslim to ride on a train or bus since muhammad rode on a camel, which is analagous.

the principle of qiyas is by no means a license for speculation or the exercise of personal opinion in legal matters but must always proceed from a previously established rule and can in no way be innovative or serve to overturn judgements based out of all the various distinct schools of law that had emerged by the third islamic century, four have survived till today

among sunni Muslims it is the custom to adhere to one of these four schools which each man is free to choose for himself

The content of their teachings there is very little difference among them, differences being confined for the most part to certain items of detail.

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many Muslim countries it was formerly the custom to maintain religious courts with judges drawn from different schools so that each man's cause might be heard according to the legal doctrine which he accepted.

each school is associated with certain region of the Islamic world where its acceptance has become customary for the majority of people

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Ijtihad is a term meaning to make

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personal judgement which was acceptable for some time but as time came when the generality of Muslims began to consider that the fundamental

work of

expounding the law had been completed. thus the door of ijtihad was considered closed.

the duty of men was not to return to the sources of the law but rather to accept as authoritative the opinions of the doctors of the law.

although men learned in the law have always had freedom to offer legal opinions on questions put to them, their task has not been to seek new directions or principles in the law but only to discover from the writings of the authoritative teachers of their respective schools what resources may be brought to bear on the question at hand.

the result of the attitude has been to make all later writing on islamic law take the form of commentaries on earlier

works and so effectively to cut muslims off from Fresh insights into the basic Sources of Islamic piety.

insistence that the Door of Ijtihad I still open has become one of the pillars of islamic modernism.

many modernists see this closed attitude as perhaps the chief cause for the failure of their community to keep pace with the Fival civilization that has come to dominat? it .

for modernists, Islam is dynamic and progress incorporating in such principles as ijti had the means for its

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own perpetual self-regeneration and self-adaption to new Circumstances .

for these men the very conserv tive attitude is a grave misunderstanding of Islam which denies its very spirit .

there is no question more fraught with significance or more hotly debated that that concerning the role which the shari'ah should play in the emergent national states of the Islamic world . Islam in modern times

The modern period as been marked by a reawakening of the Muslim peoples

preceding the reawakening was a long period of relative decline which saw the Muslim nations outstripped and then dominated by the rising civilization of Western Europe and the

it is this fact, together with some elements internal to the community that has created the sense of crisis and malaise .

The three great Muslim empires were the Ottoman in Turkey and the Mediterranean Basin, the Safawi 1. FI Persia and the Mugnal U.S. India.

by the 19th century these were all dying. The British took over India in the early 19th century and controlled it by 1848 when they crushed a revolution.

the British were established in Egypt by 1882 .

result of Turkey ' defeat in ww ! the eastern Ar ab regions also fell under European control

1915 the Sykes-Picot agreement divided Greater Syria between the kFrench and the British and allowed to Britain a kind

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of tutelage over Iraq.

In short, there was no important region of the Islamic world that was untouched by European power of safe from European colonization.

this decline disrupted traditional institutions and social forms.

The earliest efforts at religious reforms seem to have come from an awareness of internal decay within Islam itself rather than from a response to the West.

The Wahhabi movement

named after the founder,

Abd al-Wahhab (1703-1792) who came to hold a very strict view of Islam that most closely resembled the position of the classical traditionalist.

he was outraged at the great corruption of pure Islamic teaching and set about to purify the body politic of any foreign elements.

his particular

wrath fell on practices associated with Sufi worship especially the cult of

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the saints.

He was thus not really a reform movement but an effort to restore or revive the genuine Islam of the earliest generation. the faith that had brought blessing to the early community.

strength and spiritual

(consensus of

they rejected the qiyas (analogy! and the ijma Community) and said only the Quran and the Sunnah are to be considered law.

The Wahhabis grew steadily and the subdued at one point by

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the Ottoman empire.

gained a new lease on life in 1901 when Abd

Aziz ibn Saud captured the city of Riyadh and reestablished the Saudi dynasty, which rules Arabia to this day.

it has officially espoused the Wahhabi school but since WW II has showed flexibility in encouraging the modernization of the country.

The major factor in this change was the discovery of oil nevertheless. Wahhabism is the foremost attempt at Islamic revival that the modern world witnessed up until Khomeini and has had repercussions in every Islamic land.

Muhammed Iqbal (1872-1933)

Iqbal was the father of Pakistan--ie, the spiritual father. he attempted to synthesize or relate Islam to modern thought.

studied at Cambridge and became a lawyer. he was influenced by neitzsche, Hegel and the sufis, tho he had an aversion to quietism.

he believed that islam had remedies for the world
man needed to cultivate his innate greatness

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a human,

he advocated making the N. W. region of India into a Muslim state which it was

his main book was Reconstruction of Religious Thought in Islam

it deals with the inner intuitive experience tho it speaks in Scientific terms.

speaks of philosophical knowledge and religious thought
feeling that these are no opposed.

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in

religious experience one experiences reality as a whole.

felt the human intellect is moving towards religious experience.

he ties in evolution saying even science is moving in the direction of spiritual understanding with the evolution of knowledge, to what the religious experience has been all along.

God is the rational, directive creative will behind the universe.

individual

the ground of all experience "perfect

infinite wealth of creation possibilities

all the time is a continual becoming.

like energy he is above time--omnipotent--

he created finite egos out of his own freedom.

changing

in creation, evolution of humans means we get closer to intuitive knowing.

Iqbal's Ult. Con. was that humans need to aid the evolution of consciousness to get closer to this intuitive knowledge.

Science is pushing us forward so what is needed is individual effort. one works out their own salvation.

good and evil are to help man develop.

Hell is the failure to live this life well. it is a state of mind

heaven which is success

in living.

Muslim culture underlie the universe.

Muhammed is the greatest intellect of all, but he is that which we can all be.

Life must evolve and

can be what he was 100% if WA Use Jur resources.

Islam is a concrete religion, it tells us we are to perfect
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ourselves by the use of our heads, knowledge, etc.
the human pred.

the failure to develop our potential
prayer is what relates us to the goal of intuitive knowledge.
In the book *The Spirit of Islam* Sayyid Amir Ali (1849-1923) puts
forth the following characteristics of modernist Islam.

it has been called the Bible of Islamic modernism.
these characteristics are:

a strong sense of dynamism,

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that

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the meaning of

Islam in modern times is

a call to action!

2. a need to counter explicit or implicit criticism of Islam
arising out of the Western impact.

a preference for rational methods in the interpretation of
religious doctrine with a tendency to deny supernatural,
legendary,

or miraculous elements in the tradition.

a romantic interpretation of Islamic history, particularly
the earliest generations,

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of

Islam-

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that is part of the general defense
insistence upon the agreement between Islamic teachings
and those of science.

a preoccupation with the personality of the Prophet and a
tendency to exalt his moral and intellectual qualities.

7. the identification of Islamic teaching with liberal and
humanitarian values compatible to the present age.

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anti-sufi attitude which looks upon later Islamic mysticism as obscurantist and the partial Cause of Muslim Weakness; and

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3.

& rejection of the authority of the medieval legal schools
refusal to adhere to their methods.
the resurgence of Muslim peoples in every sphere, not just religious,

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is one of the principal facts of the 20th century.

II one country after another has thrown off foreign domination and gained independence.

the only major region controlled by non-muslim power is Soviet Central Asia where Islam is rapidly disappearing among the younger generation.

in other countries, such as Pakistan, there have been sustained attempts to work out the implications of Islamic commitment for social and political life.

There is no question but what Islam is making an impact upon the world as a whole today whether with modernization

a return

to fundamental roots, as is occurring in Iran and Egypt, not to mention Beirut.